GAHC010277142024

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THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WA/435/2024

DR. JANIFA KAIFEE AHMED
D/O KAMAL UDDIN AHMED, RESIDENT OF VILLAGE RUPAHI, PO RUPAHI, DIST NAGAON, ASSAM 782125

VERSUS

THE STATE OF ASSAM AND 3 ORS
REPRESENTED BY ITS PRINCIPAL SECRETARY HEALTH AND FAMILY WELFARE DEPARTMENT, GOVT. OF ASSAM, DISPUR GUWAHATI 781006

2:THE NATIONAL BOARD OF EXAMINATIONS IN MEDICAL SCIENCES
NEW DELHI 110075

3:THE DIRECTOR OF MEDICAL EDUCATION
ASSAM SIX MILE KHANAPARA GUWAHATI 781022 ASSAM

4:THE PRINCIPAL
SILCHAR MEDICAL COLLEGE
SILCHAR
CACHAR ASSA

Advocate for the Petitioner : MR. A B T HAQUE, MR. J M A CHOUDHURY,MR. S K TALUKDAR

Advocate for the Respondent : SC, HEALTH, DY.S.G.I.

BEFORE
HONOURABLE MR. JUSTICE KALYAN RAI SURANA
HONOURABLE MR. JUSTICE MRIDUL KUMAR KALITA

ORDER

Date : 23.12.2024
(K.R. Surana, J.)

1. Heard Mr. S. K. Talukdar, learned counsel for the appellant. Also heard Mr. D. P. Bora, learned standing counsel for the Health Department representing respondent Nos. 1, 3 and 4 and Mrs. R. Devi, learned CGC appearing for the respondent No.2.

2. This Intra court Appeal is presented against the order dated 18.12.2024, passed by the learned Single Judge in WP(C) No. 6434/2024, thereby dismissing the writ petition.

3. In brief, the case of the appellant is that she is an MBBS doctor, who is aspiring for admission in Post-Graduate Medical Course. The appellant had served at Messelkhowa MPHC of Goalpara district under 1 year rural compulsory posting from 09.04.2018 to 08.04.2019.

4. Thereafter, the appellant was appointed as Medical & Health Officer-I at Garajan SG at Nagaon vide notification dated 23.10.2019, pursuant to which the appellant had joined this post on 24.10.2019.

5. On 13.03.2024, the Government amended the Medical colleges of Assam (Regulation of admission into Post Graduate Degree and Diploma Courses) Rules, 2021, (2021 Rules) in exercise of power in the Article 309 of the Constitution of India, which was published in the Assam Gazette Extraordinary, dated 13.03.2024, which is the date by virtue of which the Medical Colleges of Assam (Regulation of Admission into Post Graduate Degree and Diploma Courses) (Amendment) Rules, 2024 came into effect.

6. The relevant Rule 7(i)(c), as amended, is quoted below.

Amendment of rule 7

2. (i) In the principal Rules, in rule 7, in sub-rule (i), after clause (c), in last line, after the word and brackets (SHS seats), the punctuation mark ":" shall be inserted and thereafter the following proviso shall be inserted, namely:-

"Provided that

(i) State Quota seats shall be reserved in each session for the Doctors appointed in the State Health Services on regular basis on the recommendation of the Assam Public Service Commission or Medical and Health Recruitment Board and who have completed five years or more than five years of continuous service. For counting the experience of five years of service, service under Regulation 3(f) of Assam Public Service Commission (limitation and Function) Regulation, 1951, Service under rule 17B of Medical Health Recruitment Board rules, 2017, service under any Society or Agency created by the State Government or National Health Mission shall also be considered,

(ii) the applicant shall have to complete the required period of service on or before 31st May of the year of admission and a certificate to this effect shall be submitted in the format as at Appendix-III along with the application form for Post Graduate Counseling,

(iii) Seat Matrix and the allotted institution for State Health Service Quota shall be notified by the Director of Medical Education with approval of competent authority before the counseling and in event of increasing in the numbers of PG seats in Medical Colleges,

there shall be proportionate increase of seats for in-service government doctors (State Health Service Quota seats)."

The amended Rule 7(i)(c) as it stood before amendment is quoted herein below:

"*7 (i) The following Quota/Reservation of seats shall be applicable in respect of admission to the Post Graduate Degree & Diploma Courses in Medical Colleges-*

(a) .....

(b) .....

(c) SHQ Seats: 40 Seats (37 Degree and 3 Diploma) out of Total State Quota seats shall be reserved in each session for the Doctors appointed in the State Health Services on regular basis on the recommendation of the APSC/ MHRB and who have completed five years or more service in Rural Areas, However for counting the experience of five years of service in Rural Areas period of work under Regulation 3f of APSC (Limitation & Function 1951)/17D

of MHRB rules, service under any Society/Agency created by the State Government or NHM shall also be counted. The applicant must complete the required period of service in Rural Areas on or before 31 May of the year of Admission and a certificate to this effect shall be submitted in the format at Appendix III along with the application form for Post Graduate Counselling Seat Matrix and the allotted institution for SHQ shall be notified by the Directorate of Medical Education with approval of competent authority before the counselling. In the event of increasing in the numbers of PG seats in Medical Colleges, there shall be proportionate increase of seats for in-service government doctors (SHQ seats)."

7. The case of the appellant is that on 09.11.2023, notice was issued by the National Board of Examinations in Medical Sciences, New Delhi under "Subject: Tentative Schedule of NBEMS Examination scheduled in first half of year 2024", by which the Post Graduate NEET examinations were scheduled from 03.03.2024. Thereafter a subsequent notice dated 09.01.2024, the date of conducting of NEET-PG, 2024 was rescheduled from 03.03.2024 to 07.07.2024, Later on by another notice dated 05.07.2024, the revised schedule for conduct of NEET-PG, 2024 was rescheduled to 11.08.2024 in two shifts.

8. Accordingly, the appellant offered her candidature for the said examinations and having scored 79.9461779, she was placed at rank 43393. The appellant got provisionally selected for MD Course in Radio Diagnosis at Silchar Medical College. The appellant projects that she is a top rank holder as per the select list dated 26.11.2024, against State Health Service Quota ('SHQ' for short).

9. In terms of the Admission Notice dated 26.11.2024, the candidates appearing at Serial No. at 5 to 262 were called for counseling on 28.11.2024 and candidates at Serial No. 265 to 1577 were called for counseling on 29.11.2024 and accordingly, the appellant who claims to be ranked at Serial No. 574, was called undergoing counseling on 29.11.2024. In course of the counseling, appellant was informed that she does not fulfill the 5 year of continuous service clause which was as per the amendment carried out in 2024 to the 2021 Rules,

10. Accordingly, the appellant has approached this Court by filing WP (C) No. 6434 of 2024, whereby the appellant has called upon for issuance of a mandamus to direct the respondents to allow the appellant for provisional

admission into Postgraduate Courses in Silchar Medical College, Silchar under the SHQ for the Session 2024 against the seat for which she was selected in the provisional select list dated 26.11.2024.

Submissions of the learned counsel for the appellant

11. The learned counsel for the appellant contents that usually the admission into Postgraduate Courses in Medical Sciences are completed within the month of May of the academic year and accordingly, while the State Government brought in the amendment to Rule 7, by notification issued on 13.03.2024, the process of admission had already began by issuance of notice dated 09.11.2023.

12. Accordingly, it is contended that the amendment would not be applicable on the appellant as the amendment would operate prospectively and therefore, in respect of the process which was initiated on 9-11-2023, the amendment notified on 13.03.2024 would have no application.

13. It is also contended by referring to the case of "*Tej Prakash Pathak and others Vs. State of Rajasthan and others",* reported in *2024 0 Supreme (SC) 1001*, that the initiation of the admission process having commenced on 09.11.2023, the various dates of the beginning and end date of applications, scrutiny, and the NEET-PG examination dates are merely various steps in the process of admission, for which the amendment by notification dated 13.03.2024, could not apply retrospectively as the appellant already had one year of rural service from 09.04.2018 to 08.04.2019 and with effect from 31.10.2019 to till date, as because on 02.11.2024, the appellant had rendered rural service for a period of 5 years 0 months 4 days continuously.

14. Accordingly, it is submitted that even if the date of application is

considered, on which the appellant will be deemed to have less than 5 years of continuous service, but she has a qualification of 1 year of rural service from 09.04.2018 to 08.04.2019 and therefore, there will be no necessity of continuous rural service as per the 2021 Rules, where the appellant is still qualified with the required number of 5(five) years of rural service.

15. It is contended that with the various dates given in the notification, the learned Single Judge ought not to have rejected the contention of the appellant on the ground of applicability of the notification dated 13.03.2024, as the said legal proposition, as accepted by the learned Single Judge, based on the decision of the Supreme Court of India in the case of *Vidhi Himmat Katariya and Ors. Vs. State of Gujarat and Others* reported in *2019 (10) SCC 20*, would operate counter and/or contrary to the ratio laid down in the case of *Tej Prakash Pathak (*supra*).*

16. It is also submitted that the learned Single Judge had relied on notification dated 16.04.2024 to be the notice issued on the said date, which is not borne by the record and moreover, there is nothing on record to show that the admission process was not initiated vide notice issued on 09.11.2023.

17. In support of his contentions, the learned counsel for the appellant has also placed reliance on the following cases:

i. Dr. (Major) Meeta Sahai vs State of Bihar & Ors – (2019) 0 Supreme(SC) 1376

ii. M. Venkataramana Hebbar (D) By LRs vs M. Rajagopal Hebbar & ors - 2007 (3) Supreme 794

iii. Secretary, A.P. Public Service Commission vs B. Swapna And Ors - (2005) 4 Supreme Court Cases 154

iv. Deboranjan Saikia And Ors vs State of Assam and Ors – (2005) 0 Supreme(Gau) 514.

Submissions of the learned Standing Counsel for the Health

Department

18. The learned standing counsel for the Health Department has submitted that the submission of online applications commenced from 16.04.2024 by virtue of a notice issued by the National Board of Examinations in Medical Sciences, New Delhi, a copy of the first page of the same has been produced to this Court, which is kept as a part of record, and it is submitted that the various dates which were provided in the notification dated 19.11.2023, and 09.01.2024 were only tentative and therefore, the said notification would have to be construed to be only a tentative notification and that after the appellant was selected in the NEET-PG, the State Government's criteria for allotment of State Health Service Quota would be applied, which was already in place by the amendment notification dated 13.03.2024.

19. By referring to the educational notification issued by the Director of Medical Education Assam on 14-11-2024 and admission notice subsequently issued by the same authority for the document verification clearly indicated that the admissions shall be provisional and will be subject to fulfillment of all the requisite eligibility criteria "Medical colleges of Assam (Regulation of admission into Post Graduate Degree and Diploma Courses) Rules, 2021, (amendment up todate)".

20. Accordingly, it is submitted that the appellant is fully aware of the criteria required for higher selection and admission into the PG courses in the Medical College in Assam under the State Health Services Quota.

21. In support of his contention that the Rules applicable on the date of admission will apply, reliance is placed on the decision of three judgments of the Supreme Court of India in the case of *Vidhi Himmat Katariya* (supra).

Reasons and decision

22. We have perused the memo of writ appeal, writ petiiton and documents appended thereto, affidavit-in-opposition filed by the respondent No. 3, along with documents appended thereto, as well as the affidavit-in-reply. We have also perused the decisions cited at the Bar.

23. The notice dated 09.11.2023 issued by the National Board of Examinations in Medical Sciences is under the following heading: "Subject: Tentative Schedule of NBEMS Examination scheduled in first half of year 2024" and as per the said notice, it is provided that the NBEMS shall be conducting the following examinations as per the calendar mentioned below until any further updates and the candidates are advised to check the exact dates of examinations from the Information details of NBEMS website as the above dates are purely tentative and subject to approvals and confirmations.

24. As per the contents of the notice dated 05.07.2024, the same is with "Subject: Revised schedule for conduct of NEET-PG 2024", whereby it is informed that in continuation of the NBEMS notice dated 22.06.2024, the conduct of NEET-PG 2024 examinees have been rescheduled to be conducted on 11.08.2024, and it is also provided that further details regarding the conduct of examination in two shifts shall be published on NBEMS website https://natboard.edu.in/in due course.

25. As the learned Single Judge had taken note of the notice dated 16.04.2024, in paragraph 20 and 21 of the impugned order, on a perusal of the copy of notice dated 16.04.2024, of the first page of notice dated 16.04.2024, produced by The learned Standing Counsel for the Health Department, it is seen that by the said notice dated 16.04.2024, it is with "Subject: Applications invited for National Eligibility Entrance Test-Postgraduate (NEET-PG) 2024-regarding." The said notice contains information about the important dates, viz, (i)

availability of information bulletin from 16.04.2024 onwards; (ii) Online submission of the application form : 16.04.2024 (3:00 PM onwards till 11:55 PM); (iii) Date of examination : 23.04.2024; (iv) Declaration of result : by 15.07.2024.

26. We also take into consideration that even the dates given in the said notice dated 16.04.2024 were rescheduled and in so far as the date of examination is concerned, the NEET-PG examination are stated to have been held on 11.08.2024.

27. However, we take note of the fact that the said notice dated 16.04.2024 is available in the internet and the NEET-PG 2024 information bulletin is also available on the website of the National Board of Examination for the 2024-25 session. Therefore, for all intents and purpose, the Court is unable to accept the contention of the learned counsel for the appellant that the initiation of the process of NEET-PG examination was on 09.11.2023 or by issuance of notice dated 09.01.2024. The reason to take the said view is because of the fact that notice dated 09.11.2023 and 09.01.2024, the same appears to be notice for conducting of NEET-PG Examination 2024 examination, wherein the dates given are tentative and in para 5 of the said notice refer to NBEMS website for information bulletins, application form and other details.

28. On perusal of the notice dated 05.07.2024, it is seen that it contains revised scheduled for conduct of NEET-PG, 2024 Examination, the same is in continuation to the notice dated 22.06.2024, and in the said notice also, Clause 4 thereof provides information of the conduct of examination in two shifts to be published in the NBEMS website in due course.

29. The Court takes the note of the submissions made by the learned Standing Counsel for the Health Department that it is pursuant to the notice

dated 16.04.2024 issued by the National Board of Examination in Medical Sciences, New Delhi that the initiation of the process had began and that the information bulletin which was followed is stated to have been uploaded on 16.10.2024, wherein it is stated that the online submissions of application forms was between 16.04.2024 to 06.05.2024 and that the examinations were to be held on 23.06.2024. however, the examinations were held on 11.08.2024, by which time 2021 Rules were amended on 13.03.2024.

30. Therefore, on this account, the Court is unable to any error with the finding of the learned Single Judge as regards the notice issued on 16.04.2024 by the Respondent No. 2, inviting applications for NEET-PG -2024.

31. Notwithstanding the eligibility of the appellant in the NEET-PG Examination 2024, for the purpose of being allotted Postgraduate Medical seats under the State Services Health Quota, the respondent authorities are bound by the 2024 Amendment to the 2021 Rules which was carried out and given effect to 13.03.2024 from the date of its publication in the Assam Gazette.

32. Therefore, when the Admission notice dated 14.11.2024 indicated that the admissions will be held as per the 2021 Rules, which is Amended up-to-date, which is repeated in the subsequent notification fixing the date of counseling, the Court is of the view that the amendment criteria under the notification dated 13.03.2024 would be applicable and therefore, of that account also, we do not find any infirmity if the decision of the learned Single Judge that as Rules 7(i)(c) was amended by the Amendment Rules of 2024, which was notified in the Assam Gazette on 13.03.2024, the said amended rules would be squarely applicable for the appellant and also for the concerned authorities during the counseling sessions. Therefore, the ratio laid down in the case of *Vidhi Himmat Katariya* (supra) is found to be correctly applied by the learned

Single Judge.

33. Coming to the decision of the Constitution Bench of the Supreme Court of India in the case of *Tej Prakash Pathak* (supra), the Court is bound by the ratio laid down in the said decision, which involves recruitment process and the ratio laid down therein that the eligibility criteria for placement in the select list cannot be altered after the recruitment process is commenced. The said ratio cannot be applied under the facts and circumstances of the present case in hand because in the present case, the notice inviting applications was issued on 16.04.2024 by the National Board of Examinations in Medical Science, New Delhi, but before it, the notification dated 13.03.2024 was already published. For the same reasons, the other cases cited by the learned counsel for the appellant would not help the appellant for which the same are not discussed herein.

34. The application by the appellant for post-graduate seat under the NEET-PG-2024, would have to be considered in light of the notification dated 16.04.2024 as the brochure or information bulletin were issued thereafter. In this regard, we have held hereinbefore that the notice dated 09.11.2023, and 09.01.2024 are tentative and it is clearly mentioned in the said notice that the dates are purely tentative and subject to approvals and confirmations. There is no material on record that the said schedule was approved and confirmed because it is not in dispute that the NEET-PG selection examination was held only on 11.08.2024.

35. Under this circumstances, though the appellant had served at Messelkhowa BPHC, Goalpara district from 09.04.2018 to 08.04.2019, under one year compulsory rural posting program and had subsequently served as Medical & Health Officer-I at Garajan SG at Nagaon 23.10.2009 till date and had

rendered 05 years 0 months 04 years service, as on 02.11.2024, yet by the cut off date of May, 2024, the appellant does not have five years of continuous service, which means 5 years service without any break in service.

36. Therefore, we do not have any reasons to interfere with the impugned order 18.12.2024 passed by the learned Single Judge in WP(C) No. 6424/2024.

37. However, before parting with the records, we take note of the provisions of Rule 2024, of the Medical colleges of Assam (Regulation of admission into Post Graduate Degree and Diploma Courses) Rules, 2021, which provides to the State Government a power to relax.

38. Accordingly, taking note of the fact that the appellant had projected to have secured top position for MD Course under State Health Services Quota in the Radio Diagnosis Department at Silchar Medical College, the Court is inclined to provide that if the appellant submits a representation to the appropriate Government, i.e. the Commissioner and Secretary to the Government of Assam, Medical Education and Research Department, within 12.00 noon of 24.12.2024, the said authority shall take a decision in course of the day i.e., on 24.12.2024 and intimate the result thereof to the appellant to the email address of the appellant to the provided in the representation.

39. Therefore, subject to the submission and disposal of the representation on 24.12.2024, a seat of Radio Diagnosis in Silchar Medical College shall not be declared, which is otherwise scheduled to be declared on 23.12.2024 as per Educational Notice dated 10.04.2024.

40. The learned Standing Counsel for the Health Department shall verbally communicate this order to the Director, Medical, Education, Assam and to the Commissioner & Secretary to the Government of Assam, Medical, Education and Research Department.

41. The downloaded copy of this order may be communicated, as procurement of the certified copy is likely to be delayed.

42. This writ appeal is dismissed at the "admission" stage without issuance of notice on the respondents.

JUDGE **JUDGE**

Comparing Assistant